

**THE REPUBLIC OF UGANDA**

**IN THE MATTER OF A MASTER CONTRIBUTION  
AGREEMENT FOR PARTICIPATION IN VESTAFI'S  
CONDOMINIUM POOLING MODEL**

**BETWEEN**

**VESTAFI VENTURES LTD**

**AND**

**EACH APPROVED CONTRIBUTOR**

## **1. PARTIES**

This Contribution Agreement ("Agreement") is entered into between:

**1. Vestafi Ventures Ltd**, a company incorporated in Uganda with its registered office at KS Plaza, Ntinda Road, Kampala (hereinafter referred to as "Vestafi" or "the Company," which term shall include its successors and assigns);

AND

**2. Each Approved Contributor**, which term shall include any person or entity who has registered with Vestafi by providing valid contact information and bank details, and who has been approved by Vestafi in accordance with its verification procedures (hereinafter referred to as "the Contributor," which term shall include successors and permitted assigns).

## **2. BACKGROUND**

a) Vestafi operates a technology platform that enables approved contributors to pool resources toward the co-ownership of income-generating condominiums.

b) All properties acquired under this model are registered in **Zenolius Holdings Ltd**, a dedicated holding company established to safeguard contributor interests, provide clear title ownership, and shield contributors from personal liability.

c) The Contributor acknowledges that Vestafi Ventures Limited administers the platform, while Zenolius Holdings Ltd is the entity in which property titles are registered for the benefit of contributors.

d) The Contributor wishes to participate in this arrangement in accordance with this Agreement and the Vestafi Terms and Conditions.

### **3. INCORPORATION BY REFERENCE**

This Agreement shall be read together with and is subject to the **Vestafi Terms and Conditions**, which are hereby incorporated by reference and form an integral part of this Agreement.

By completing registration on the [vestafi.co](https://vestafi.co) platform and making a contribution, the Contributor acknowledges and agrees to be bound by this Agreement and the Vestafi Terms and Conditions.

### **4. CONTRIBUTION AND PAYMENT**

4.1 The Contributor agrees to contribute funds through Vestafi's designated custodian account.

4.2 Each contribution shall be linked to this Agreement through the Contributor's registration information (email, phone number, and bank details) and their verified payment record.

4.3 A contribution is deemed final upon confirmation of cleared funds by Vestafi's designated custodian.

### **5. ALLOCATION AND INCOME DISTRIBUTION**

5.1 Each contribution is allocated to a designated property pool, with legal title to the property vested in Zenolius Holdings Ltd.

5.2 The Contributor shall be entitled to a share of the net rental income proportional to their contribution, after deducting applicable fees, taxes, and expenses.

5.3 Income distributions shall be made monthly or quarterly to the Contributor's registered bank account.

5.4 Income is variable and dependent on property performance and market conditions. No returns are guaranteed.

## 6. HOLDING PERIOD AND EXIT

6.1 Each contribution shall be subject to a **minimum holding period of three (3) years** from the date of contribution.

6.2 After the holding period, contributors may exit during Vestafi's scheduled liquidity windows.

6.3 If no buyer is available during an exit window, the contribution shall remain until the next exit window or until the underlying property is sold.

6.4 Vestafi may defer or stagger exits if necessary to maintain financial stability and ensure fairness to all contributors.

## 7. REFUND POLICY

7.1 Contributions are **non-refundable once deployed** from the custodian account into the property SPV under Zenolius Holdings Ltd.

7.2 Refunds may be issued for contributions that have not yet been deployed, for example in the case of an invalid registration or rejected participation.

7.3 Refunds due to fraud or material misrepresentation by Vestafi shall be made in accordance with applicable Ugandan law.

## 8. TRUST STRUCTURE AND LIABILITY

8.1 Zenolius Holdings Ltd holds each property in trust for contributors under a custodian-administered arrangement.

8.2 This structure protects contributors from personal liability. Contributors have only economic rights to income and sale proceeds and do not acquire direct legal title.

8.3 Vestafi shall act as administrator of the arrangement and ensure proper record-keeping, rent disbursement and management.

## **9. VERIFICATION REQUIREMENTS**

9.1 Vestafi currently verifies contributors based on registration details including email, phone number, and bank account information.

9.2 Vestafi may, at its discretion, introduce additional verification measures in line with legal or regulatory requirements. Such measures shall automatically apply to all contributors without requiring an amendment to this Agreement.

## **10. TAXES**

Each Contributor is solely responsible for any tax obligations arising from income distributions. Vestafi does not provide tax advice and shall not be responsible for filing taxes on behalf of contributors.

## **11. REPRESENTATIONS AND WARRANTIES**

By making a contribution, the Contributor represents that they:

- a) Are over 18 years of age and legally competent;
- b) Have provided accurate registration information;
- c) Contribute voluntarily and understand the risks of real estate pooling;
- d) Have not relied on any promise of guaranteed returns;
- e) Have read and accepted this Agreement and the Vestafi Terms and Conditions.

## **12. CONFIDENTIALITY**

All information related to this Agreement shall remain confidential except as required by law or for operational purposes, including disclosure to the custodian and property administrators.

## **13. CONFLICT OF INTEREST**

Vestafi shall disclose any conflict of interest that may arise and shall manage it in good faith. Contributors waive any claim for damages where such conflicts are disclosed and reasonably managed.

## **14. FORCE MAJEURE**

Vestafi shall not be held liable for any delays or failure to perform caused by events beyond its reasonable control, including natural disasters, regulatory changes, market disruptions, or government actions.

## **15. DISPUTE RESOLUTION**

15.1 Any dispute arising under this Agreement shall first be resolved through good faith negotiation.

15.2 If unresolved, the matter shall be referred to mediation at the **Uganda Centre for Arbitration and Dispute Resolution (CADER)**.

15.3 If mediation fails, the dispute shall be submitted to the **High Court of Uganda** for final resolution.

## **16. GOVERNING LAW AND JURISDICTION**

This Agreement shall be governed by the laws of Uganda. The parties submit to the exclusive jurisdiction of the courts of Uganda.

## **17. BINDING EFFECT**

This Agreement is binding upon every Contributor upon:

- a) Completion of registration and approval by Vestafi; and
- b) Transfer of funds into the designated custodian account.

No additional signatures are required for enforceability.

## **18. ENTIRE AGREEMENT**

This Agreement, together with the Vestafi Terms and Conditions, constitutes the full understanding between Vestafi and the Contributor and supersedes all previous arrangements.